

26STCV04261 26STCV04261

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MOTION TO COMPEL

The Court

tenders the following tentative decision in the matter Marta Cabrera Cabrera v. FCA US, LLC, et al., Los Angeles County Superior Court case number 26STCV04261, set for hearing on July 20, 2026. Marta Cabrera Cabrera (Plaintiff) moves for an order compelling FCA US, LLC (Defendant) to comply with Code of Civil Procedure section 871.26 by producing certain documents. Plaintiff also seeks the imposition of sanctions pursuant to that section. Defendant opposes the motion. The motion is granted in part. The Court awards Plaintiff \$2,500 in sanctions.

A.

Legal Standard

In civil

actions seeking restitution or the replacement of a motor vehicle pursuant to Code of Civil Procedure section 871.20, within 60 days of the filing of an answer or other responsive pleading, the "parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).) Plaintiffs must provide certain documents and information pursuant to subdivisions (f) and (g), and defendants must provide the documents outlined in subdivision (h). Sanctions of \$1,500 and \$2,500 are required against a plaintiff or defendant, respectively, that fails to comply with section 871.26, subdivision (b), absent a showing of good cause. (Id. § 871.26, subd. (j)(1).)

B. Discussion

Plaintiffs move for an order compelling Defendant to produce all discovery materials required as initial disclosures under Code of Civil Procedure section 871.26. Specifically, Plaintiffs argue that Defendant has not provided verified responses and has not produced all materials listed within section 871.26, subdivision (h), subparagraphs 6–10, 12, and 13. Plaintiffs also seek sanctions for Defendant's failure to produce these materials. The Court will address each issue in turn.

Defendant need not provide verifications.

First, Plaintiff argues that Defendant's responses are deficient because it has not provided verifications. Code of Civil Procedure section 871.26 does not include a verification requirement. Instead, Plaintiff points to the verification requirement set out in section 2016.090. That section provides for certain initial disclosures required in all civil actions. (Id., § 2016.090, subd. (a)(1).) It further states that "disclosures under this section shall be verified either in a written declaration by the party or the party's authorized representative, or signed by the party's counsel." (Id., § 2016.090, subd. (a)(5).) This requirement is limited to section 2016.090 by subdivision (a)(5). Thus, the provision does not require verifications for other initial disclosures, such as those required under section 871.26. Plaintiff's citation to the legislative history surrounding Assembly Bill 1755, the legislation which produced the Song-Beverly initial disclosure regime, is irrelevant. Even if such sources constituted binding authority, the specific report to which Plaintiff refers does not even discuss a verification requirement. Thus, this argument is without merit.

Defendant has not provided all initial disclosures as required by statute.

Defendant argues that Plaintiff's motion should be denied because Defendant has provided the required initial disclosures. However, Defendant provides no testimony supporting this assertion. Defendant represents that it provided "repair records, warranty claims records, the repair order detail report, vehicle information records, sales documents, service contract reports, Customer Assistance Inquiry records, the Monroney label, TSBs, and recall-related materials, among other documents."

Subdivision (h)(10) requires production of published information service bulletins for vehicles of the same year, make, and model of the subject vehicle and reasonably related to its nonconformities, which Defendant has not provided. Subdivision (h)(12) requires production of warranty policies and procedure manuals, which Defendant has not provided. And subdivision (h)(13) requires production of service manuals for the subject vehicle and reasonably related to its nonconformities, which Defendant has not provided. Thus, Defendant has not provided all initial disclosures as required under section 871.26, subdivision (h).

Sanctions are warranted under section 871.26.

Plaintiff argues for the imposition of sanctions. Unless the defendant failing to comply with section 871.26 shows good cause, a court shall impose a \$2,500 sanction against the defense attorney if the defendant fails to comply with document production requirements. (Code Civ. Proc., § 871.26, subd. (j)(1).) Here, Defendant does not present a justification for failing to comply with the initial disclosure requirements besides disagreement over their scope. Accordingly, the Court imposes \$2,500 in sanctions on Defendant's counsel.

C. Conclusion

The Court grants Plaintiff's motion in part. Defendant is ordered to provide initial disclosures as required under section 871.26, subdivisions (h)(10), (12), (13). The Court awards \$2,500 in sanctions.